

EXHIBIT B

**SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX**

-----X
EDWIN CARTAGENA,

Plaintiff,

-against-

**THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
LUCKIE (first name unknown), POLICE OFFICER
JEFFREY GASTON, POLICE OFFICER QUIRK
(first name unknown), POLICE OFFICER JOHN SOTO,
POLICE OFFICERS JOHN DOE "1" and
JOHN DOE "2",**

Defendants.
-----X

To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer; judgment will be taken against you by default for the relief demanded in the complaint.

**DATED: Hempstead, NY
December 16, 2014**

**Yours, etc.,
WHITE, CIRRITO & NALLY, LLP**

By:


**MICHAEL L. CIRRITO, ESQ.
Attorneys for Plaintiff
58 Hilton Avenue
Hempstead, NY 11550
(516) 292-1818**

Defendants' addresses:

**THE CITY OF NEW YORK
Office of the New York City Comptroller
1 Centre Street**

Index No.: 306592-14

Date Purchased: 12-17-14

SUMMONS

**Plaintiff designates Bronx
County as the place of trial.**

**The basis of venue is the
location of the incident.**

**BRONX COUNTY
COUNTY CLERK**

2014 DEC 17 PM 7:11

RECEIVED

New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT

Legal Bureau

One Police Plaza

New York, New York 10038

POLICE OFFICER LUCKIE (first name unknown)

c/o New York City Police Department

Legal Bureau

One Police Plaza

New York, New York 10038

POLICE OFFICER JEFFREY GASTON

c/o New York City Police Department

Legal Bureau

One Police Plaza

New York, New York 10038

POLICE OFFICER QUIRK (first name unknown)

c/o New York City Police Department

Legal Bureau

One Police Plaza

New York, New York 10038

POLICE OFFICER JOHN SOTO

c/o New York City Police Department

Legal Bureau

One Police Plaza

New York, New York 10038

POLICE OFFICERS JOHN DOE "1" and JOHN DOE "2"

c/o New York City Police Department

Legal Bureau

One Police Plaza

New York, New York 10038

NOTICE: The nature of this action is false and unlawful imprisonment, intentional infliction of severe emotional distress and mental anguish, negligent infliction of emotional distress, violation of Civil Rights, malicious prosecution, abuse of process, violation of 42 U.S.C. § 1983 et seq., battery, damage to property, negligence, negligent hiring, negligent training, and negligent supervision.

SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX-----X
EDWIN CARTAGENA,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
LUCKIE (first name unknown), POLICE OFFICER
JEFFREY GASTON, POLICE OFFICER QUIRK
(first name unknown), POLICE OFFICER JOHN SOTO,
POLICE OFFICERS JOHN DOE "1" and
JOHN DOE "2",Defendants.
-----X

Index No.:

Date Purchased:

**VERIFIED
COMPLAINT**

Plaintiff, by his attorneys, WHITE, CIRRITO & NALLY, LLP, upon information and belief and at all times hereinafter mentioned, alleges against the Defendants as follows:

1. The Plaintiff EDWIN CARTAGENA is a natural person and was at all times mentioned herein and continues to be a resident of the City of New York, County of Bronx, State of New York.

2. Upon information and belief, the Defendant, CITY OF NEW YORK ("CITY"), was at all times mentioned herein and still is a municipal corporation, duly organized and existing by virtue of the laws of the State of New York, with its City Hall located at City Hall Park, City of New York, County of New York, State of New York, and with the office of The Comptroller of the City of New York located at Municipal Building - Room 1225, 1 Centre Street, City of New York, County of New York, State of New York.

3. Upon information and belief, the NEW YORK POLICE DEPARTMENT ("NYPD") is a law enforcement agency maintained, controlled and employed by Defendant

BRONX COUNTY

CLERK

11:11 PM 12/29/2022

RECEIVED

CITY to enforce the law, and its headquarters are located at One Police Plaza, City of New York, County of New York, State of New York.

4. Upon information and belief, Defendant POLICE OFFICER LUCKIE (first name unknown) (herein "PO LUCKIE"), was at all times herein and still is a duly appointed, employed and acting officer, agent, servant and/or employee of Defendant CITY, more specifically as a uniformed police officer of Defendant NYPD, has a business address of 45th Precinct, 2877 Barkley Avenue, City of New York, County of Bronx, State of New York, and is being sued in both her individual and official capacities.

5. Upon information and belief, Defendant POLICE OFFICER JEFFREY GASTON (herein "PO GASTON"), was at all times herein and still is a duly appointed, employed and acting officer, agent, servant and/or employee of Defendant CITY, more specifically as a uniformed police officer of Defendant NYPD, has a business address of 45th Precinct, 2877 Barkley Avenue, City of New York, County of Bronx, State of New York, and is being sued in both his individual and official capacities.

6. Upon information and belief, Defendant POLICE OFFICER QUIRK (first name unknown) (herein "PO QUIRK"), was at all times herein and still is a duly appointed, employed and acting officer, agent, servant and/or employee of Defendant CITY, more specifically as a uniformed police officer of Defendant NYPD, has a business address of 45th Precinct, 2877 Barkley Avenue, City of New York, County of Bronx, State of New York, and is being sued in both his individual and official capacities.

7. Upon information and belief, Defendant POLICE OFFICER SOTO (first name unknown) (herein "PO SOTO"), was at all times herein and still is a duly appointed, employed and acting officer, agent, servant and/or employee of Defendant CITY, more specifically as a

uniformed police officer of Defendant NYPD, has a business address of 45th Precinct, 2877 Barkley Avenue, City of New York, County of Bronx, State of New York, and is being sued in both his individual and official capacities.

8. Upon information and belief, Defendants POLICE OFFICER JOHN DOE "1" and POLICE OFFICER JOHN DOE "2" (herein "PO DOE 1" and "PO DOE 2", respectively), whose real names are currently unknown but who stopped the Plaintiff as discussed herein, were at all times herein and still are duly appointed, employed and acting officers, agents, servants and/or employees of Defendant CITY, more specifically as uniformed police officers of Defendant NYPD, have a business address of 45th Precinct, 2877 Barkley Avenue, City of New York, County of Bronx, State of New York, and are being sued in both their individual and official capacities.

FACTUAL BACKGROUND

9. On or about October 4, 2013, at approximately 3:00 P.M., Plaintiff EDWIN CARTAGENA was lawfully present on Westchester Avenue in the City of New York, County of Bronx, State of New York.

10. The Plaintiff had been riding his motorcycle home from work when he stopped to purchase a bottle of water at a store.

11. Upon information and belief, the Plaintiff had exited a store after purchasing a bottle of water.

12. Upon information and belief, while drinking the bottle of water in front of the store, the Plaintiff saw an MTA employee with whom he was vaguely acquainted being followed by a man yelling threats and holding a box cutter.

13. Upon information and belief, Plaintiff asked the MTA employee if he was alright.

14. Upon information and belief, the man with the box cutter then turned to Plaintiff and began to threaten him.

15. Upon information and belief, Plaintiff walked toward his motorcycle so that he could leave.

16. Upon information and belief, two police officers, Defendants PO DOE 1 and PO DOE 2, arrived at the scene.

17. Plaintiff informed PO DOE 1 and PO DOE 2 that an individual had been threatening him with a box cutter.

18. PO DOE 1 asked to search Plaintiff and Plaintiff said no.

19. PO DOE 1 asked Plaintiff for his identification and Plaintiff handed PO DOE 1 his identification.

20. PO DOE 1 told Plaintiff to remain at the scene because a supervisor was coming to the scene.

21. Several minutes later Defendants PO LUCKIE, PO GASTON and PO SOTO arrived.

22. Defendant PO LUCKIE told Defendants PO GASTON and PO SOTO that Plaintiff should be locked up because he likes to sue.

23. Defendant PO LUCKIE further told Defendants PO GASTON and PO SOTO to search the Plaintiff and take his motorcycle.

24. Defendants PO GASTON and PO SOTO then effected an illegal search of Plaintiff without Plaintiff's consent.

25. Upon information and belief, Defendants found on Plaintiff's person a utility knife used by Plaintiff in his employment.

26. Upon information and belief, Plaintiff was then arrested and charged with violating Penal Law §265.01(1) for allegedly possessing a 'gravity knife'.

27. Upon information and belief, the knife in Plaintiff's possession is not nor has it ever been a 'gravity knife' as that term is defined in the Penal Law.

28. Upon information and belief, the Plaintiff was then handcuffed and brought to the New York Police Department's 45th Precinct, located at 2877 Barkley Avenue, City of New York, County of Bronx, State of New York (45th Precinct).

29. Upon information and belief, around this time the Defendants impounded Plaintiff's legally parked motorcycle though it had no relation to the Plaintiff's arrest.

30. Upon information and belief, Plaintiff was put into a holding cell at the 45th Precinct.

31. Upon information and belief, Plaintiff was not brought before a judge soon after Plaintiff's arrest.

32. Upon information and belief, while Plaintiff was left in a holding cell at the 45th Precinct several arrestees were brought into the 45th Precinct and then taken to go before a judge.

33. Upon information and belief, the man who had threatened Plaintiff with a box cutter was also taken to the 45th Precinct.

34. Upon information and belief, the man who had threatened Plaintiff with a box cutter was issued an appearance ticket and released hours before the Plaintiff was released.

35. Upon information and belief, the Defendants held Plaintiff's motorcycle and refused to return it for four (4) days.

36. Upon information and belief, when Plaintiff's wife appeared at the 45th Precinct, Defendants refused to release Plaintiff's personal belongings to his wife.

37. Upon information and belief, the Plaintiff had filed a complaint with the New York Police Department Civilian Complaint Review Board against Defendants LUCKIE and QUIRK because said officers engaged in intentional endangerment of the Plaintiff and his daughter while Plaintiff was lawfully driving an automobile on a public roadway in or about June of 2013.

38. Upon information and belief, Plaintiff had filed a lawsuit against the CITY OF NEW YORK and police officers under Bronx County Supreme Court index number 308258/11.

39. Upon information and belief, Plaintiff has filed a lawsuit that is pending under Bronx County Supreme Court index number 301801/13 against the CITY OF NEW YORK, the NEW YORK CITY POLICE DEPARTMENT, the NEW YORK CITY DEPARTMENT OF CORRECTIONS and individual officers including Officer Ortiz of the 45th Precinct.

PROCEDURAL HISTORY

40. Prior to the commencement of this action, Plaintiff, in accordance with the provisions of the laws of the State of New York, served a duly verified Notice of Claim and intention to sue, in writing, upon the Defendants CITY and NYPD on or about the 22nd day of November, 2013, and that said Notice was served within ninety (90) days of the occurrence herein.

41. On or about November , 2014, a 50-h hearing of the Plaintiff was held at the offices of Lex Reporting Services, 160 Broadway, 14th Floor, City of New York, State of New York.

42. That more than thirty (30) days have elapsed since Plaintiff complied with Defendants' demand to conduct a 50-h Hearing and that said claim remains unadjusted and that the Defendants have wholly refused, failed and neglected to make any adjustments of same.

43. That this action is being commenced within one year and ninety days of the date of the respective occurrence herein.

AS AND FOR A FIRST CAUSE OF ACTION:
UNREASONABLE SEARCH AND SEIZURE

44. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 43 as if fully set forth herein.

45. That at all times mentioned herein prior to the stop of Plaintiff by Defendants the Plaintiff was lawfully present on a public thoroughfare.

46. That the Plaintiff complained to Defendants PO DOE 1 and PO DOE 2 about a man harassing and threatening Plaintiff with a box cutter.

47. That the Defendants PO DOE 1 and PO DOE 2 intentionally acquired physical control over the Plaintiff and made him wait until a supervisor arrived.

48. That PO LUCKIE, PO SOTO and PO GASTON had no reason to search and seize the Plaintiff.

49. That Defendants' PO LUCKIE, PO SOTO, PO GASTON, PO DOE 1 and PO DOE 2 stop of Plaintiff was done to harass, annoy and intimidate Plaintiff.

50. That the Plaintiff had a reasonable expectation of privacy in his person and in the contents of his jacket while lawfully standing on a public thoroughfare.

51. Defendants lacked reasonable suspicion or probable cause to stop and seize Plaintiff, but did without reasonable suspicion or probable cause illegally, improperly and

unlawfully stop and seize Plaintiff in contravention of the Fourth Amendment to the United States Constitution and Article I Section 12 of the New York State Constitution.

52. The actions of Defendants resulted from and were taken pursuant to a *de facto* policy of Defendant CITY.

53. The existence of such a *de facto* policy has been known to the supervisory policy making employees of the Defendant CITY for a substantial period of time.

54. Despite their knowledge of the illegal policies and practices, the supervisory and policy making employees of the Defendant CITY have not, as a matter of policy, taken steps to terminate said practices, have not disciplined or otherwise properly supervised the individual police officers who engaged in said practices, have not effectively trained police officers with regard to proper constitutional and statutory limits on the exercise of their authority and have, instead, sanctioned the policy and practices described previously through their deliberate indifferences to the effect such policies and practices upon the constitutional rights of Plaintiff herein and the residents and visitors of the Defendant CITY.

55. That the said Defendants were acting as employees of the Defendants CITY and NYPD within the scope of their employment and under color of the statutes, ordinances, customs and usage of the State of New York, the CITY, and NYPD when said Defendants without reasonable suspicion or probable cause illegally, improperly and unlawfully stopped and seized Plaintiff.

56. As a direct and proximate result of the violation of Plaintiff's rights by the Defendants, Plaintiff suffered general and special damages as alleged in this Complaint and is entitled to relief pursuant to 42 U.S.C. § 1983 as against Defendant Officers and as against Defendants CITY and NYPD pursuant to the doctrine of respondeat superior, and as against

Defendant CITY under 42 U.S.C. § 1983 and the Fourth Amendment to the United States Constitution for having sanctioned and caused a violation of Plaintiff's rights.

57. By reason of the foregoing, the Plaintiff EDWIN CARTAGENA, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION:
DEPRIVATION OF DUE PROCESS**

58. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 57 as if fully set forth herein.

59. Upon information and belief, Defendants arrested Plaintiff after illegally and improperly searching Plaintiff.

60. Upon Plaintiff's arrest, the Defendants had a duty to without unnecessary delay bring the Plaintiff before a judge.

61. The said Defendants, upon Plaintiff's arrest, rather than bringing Plaintiff before the Court without unnecessary delay put Plaintiff in a holding cell and left him there.

62. Upon information and belief, the Defendants impounded the Plaintiff's motorcycle though it was legally parked at the time of Plaintiff's arrest and was not related to Plaintiff's arrest in any way.

63. Upon information and belief the Defendants held Plaintiff's motorcycle and refused to return it for several days.

64. The said Defendants deprived Plaintiff of his liberty and property without due process in violation of the Fifth Amendment and Fourteenth Amendment to the United States Constitution, and in violation of Article I Section 6 of the New York State Constitution.

65. That the said Defendants were acting as employees of the Defendants CITY and NYPD within the scope of their employment and under color of the statutes, ordinances, customs

and usage of the State of New York, the CITY, and NYPD when said Defendants deprived Plaintiff of his liberty without due process of law and failed to bring him before the Court without unnecessary delay.

66. The actions of Defendants resulted from and were taken pursuant to a *de facto* policy of Defendant CITY.

67. The existence of such a *de facto* policy has been known to the supervisory policy making employees of the Defendant CITY for a substantial period of time.

68. Despite their knowledge of the illegal policies and practices, the supervisory and policy making employees of the Defendant CITY have not, as a matter of policy, taken steps to terminate said practices, have not disciplined or otherwise properly supervised the individual police officers who engaged in said practices, have not effectively trained police officers with regard to proper constitutional and statutory limits on the exercise of their authority and have, instead, sanctioned the policy and practices described previously through their deliberate indifferences to the effect such policies and practices upon the constitutional rights of Plaintiff herein and the residents and visitors of the Defendant CITY.

69. As a direct and proximate result of the violation of Plaintiff's rights by the Defendants, Plaintiff suffered general and special damages as alleged in this Complaint and is entitled to relief pursuant to 42 U.S.C. § 1983 as against Defendant Officers and as against Defendants CITY and NYPD pursuant to the doctrine of respondeat superior and as against Defendant CITY under 42 U.S.C. § 1983 and the Fifth and Fourteenth Amendments to the United States Constitution for having sanctioned and caused a violation of Plaintiff's rights.

70. By reason of the foregoing, the Plaintiff EDWIN CARTAGENA, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION
UNLAWFUL IMPRISONMENT

71. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 70 as if fully set forth herein.

72. Upon information and belief, Defendants arrested Plaintiff after performing an illegal search on Plaintiff.

73. Upon Plaintiff's arrest, the said Defendants had a duty to without unnecessary delay bring the Plaintiff before a judge.

74. The said Defendants, upon Plaintiff's arrest, rather than bringing Plaintiff before the Court without unnecessary delay put Plaintiff in a holding cell and left him there.

75. That Plaintiff saw other arrestees brought into the 45th Precinct after Plaintiff be brought to court before Plaintiff.

76. That the man who had threatened Plaintiff with a box cutter was brought into the 45th Precinct, issued a mere appearance ticket, and released.

77. That the Plaintiff was unlawfully imprisoned in that he was not brought before the Court without unnecessary delay as required by law and as a result was imprisoned.

78. The Plaintiff was aware of his imprisonment at all times mentioned herein.

79. That the said Defendants were acting as employees of the Defendants CITY and NYPD within the scope of their employment and under color of the statutes, ordinances, customs and usage of the State of New York, the CITY, and NYPD when said Defendants caused Plaintiff to be imprisoned rather than bring him before the Court without unnecessary delay.

80. As a direct and proximate result of the violation of Plaintiff's rights by the Defendants, Plaintiff suffered general and special damages as alleged in this Complaint and is entitled to relief pursuant to the common law of the State of New York as against Defendant

Officers individually, and as against Defendants CITY and NYPD pursuant to the doctrine of respondeat superior.

81. By reason of the foregoing, the Plaintiff EDWIN CARTAGENA, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION:
FIRST AMENDMENT RETALIATION**

82. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 81 as if fully set forth herein

83. That the Plaintiff has a right to petition the government for a redress of grievances and to freedom of speech pursuant to the First Amendment to the United States Constitution and the New York State Constitution.

84. That Plaintiff's complaint to the New York City Civilian Complaint Review Board regarding PO LUCKIE and PO QUIRK is an exercise of Plaintiff's First Amendment rights.

85. That Plaintiff's lawsuit against the CITY OF NEW YORK, the NEW YORK CITY POLICE DEPARTMENT, Officer Ortiz of the 45th Precinct, for violations of Plaintiff's civil rights is an exercise of Plaintiff's First Amendment rights.

86. That the actions of Defendants PO LUCKIE, PO SOTO, PO GASTON, PO QUIRK, and PO DOE 1 and PO DOE 2 were motivated or substantially caused by the Plaintiff's exercise of his First Amendment rights.

87. That the Defendants' actions have effectively chilled the exercise of Plaintiff's First Amendment Rights.

88. That Defendants' actions constitute harassment and Defendants' seek to intimidate the Plaintiff in response to the Plaintiff's CCRB complaint and lawsuit.

89. That the said Defendants were acting as employees of the Defendants CITY and NYPD within the scope of their employment and under color of the statutes, ordinances, customs and usage of the State of New York, the CITY, and NYPD when said Defendants caused Plaintiff to be imprisoned rather than bring him before the Court without unnecessary delay.

90. As a direct and proximate result of the violation of Plaintiff's rights by the Defendants, Plaintiff suffered general and special damages as alleged in this Complaint and is entitled to relief pursuant to the common law of the State of New York as against Defendant Officers individually, and as against Defendants CITY and NYPD pursuant to the doctrine of respondeat superior.

**AS AND FOR A FIFTH CAUSE OF ACTION:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

91. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 90 as if fully set forth herein.

92. That the aforesaid actions and conduct of Defendants were intentional.

93. That as a result of said intentional actions, the Plaintiff sustained severe emotional harm and psychological and mental distress and anxiety and continues to suffer from same.

94. That the said Defendants engaged in said actions and conduct with the intent of causing Plaintiff emotional harm and psychological and mental distress and anxiety.

95. That the actions and conduct of said Defendants shocks the conscience.

96. That the said Defendants Officers were acting as employees of the Defendants CITY and NYPD within the scope of their employment and in furtherance of the objectives of said employers when said Defendants engaged in the aforesaid actions and conduct toward Plaintiff.

97. As a direct and proximate result of the intentional infliction of emotional distress on Plaintiff, Plaintiff has suffered general and special damages as alleged in this Complaint and is entitled to relief pursuant to the common law of the State of New York as against Defendants Officers individually, and as against Defendants CITY and NYPD pursuant to the doctrine of respondeat superior.

98. By reason of the foregoing, the Plaintiff EDWIN CARTAGENA, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION:
NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS**

99. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 98 as if fully set forth herein.

100. The aforesaid actions and conduct of Defendants Officers were the result of said Defendants' negligence.

101. That as a result of the negligence of said Defendants, this Plaintiff was caused to sustain severe emotional harm and psychological and mental distress and anxiety and continues to suffer from same.

102. The negligence and carelessness of the said Defendants consisted of unlawfully stopping and seizing Plaintiff for an alleged violation of a law which had not been violated, placing Plaintiff in holding, failing to bring Plaintiff before the Court without unnecessary delay, refusing to release the Plaintiff's personal property to his wife, an authorized representative, and releasing the man who had the box cutter with only a ticket.

103. That the said Defendants Officers were acting as employees of the Defendants CITY and NYPD within the scope of their employment and in furtherance of the objectives of

said employers when said Defendants engaged in the aforesaid actions and conduct toward Plaintiff.

104. As a direct and proximate result of the negligent infliction of emotional distress on Plaintiff, Plaintiff has suffered general and special damages as alleged in this Complaint and is entitled to relief pursuant to the common law of the State of New York as against Defendants Officers individually, and as against Defendants CITY and NYPD pursuant to the doctrine of respondeat superior.

105. By reason of the foregoing, the Plaintiff EDWIN CARTAGENA, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION:
NEGLIGENCE

106. Plaintiff repeats and realleges each and every allegation contained in Paragraphs "1" through "105" inclusive, with the same force and effect as if herein set forth at length.

107. Defendants CITY and NYPD were negligent in failing to institute and/or follow proper regulations and procedures to screen, hire, train, discipline, and supervise the individual Defendants in the discharge of their duties.

108. As a result of said negligence, Plaintiff has and continues to suffer pain, public humiliation, mental and emotional distress. Additionally, Plaintiff has expended legal and other expenses and will be required to incur further sums of money for legal services.

109. Plaintiff has suffered as a result of the negligence of the Defendants CITY and NYPD as to damage to his reputation, character, and property.

110. By reason of the foregoing, the Plaintiff EDWIN CARTAGENA has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION:
ATTORNEYS FEES**

111. Plaintiff repeats and realleges each and every allegation contained in Paragraphs "1" through "110" inclusive, with the same force and effect as if herein set forth at length.

112. Pursuant to 42 U.S.C. § 1988, the prevailing party in an action to enforce 42 U.S.C. § 1983 may be entitled to attorneys fees.

113. As such, Plaintiff is entitled to recover reasonable attorneys fees for this action to enforce Plaintiff's Constitutional and civil rights pursuant to 42 U.S.C. § 1983.

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

- a. On the First Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts;
- b. On the Second Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts;
- c. On the Third Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts;
- d. On the Fourth Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts;
- e. On the Fifth Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts;
- f. On the Sixth Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts;
- g. On the Seventh Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts;

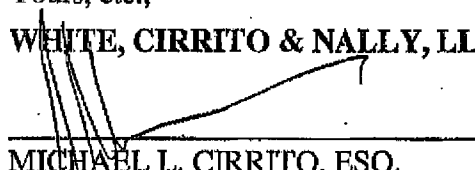
- i. On the Eighth Cause of Action for reasonable attorney's fees pursuant to 42 U.S.C. § 1988;
- m. Costs and disbursements of this action; and
- n. Such other and further relief as to this Court deems just and proper.

Dated: Hempstead, NY
December 16, 2014

Yours, etc.,

WHITE, CIRRITO & NALLY, LLP

By:


MICHAEL L. CIRRITO, ESQ.

Attorneys for Plaintiff
58 Hilton Avenue
Hempstead, NY 11550
(516) 292-1818

ATTORNEY VERIFICATION

STATE OF NEW YORK)
)
COUNTY OF NASSAU) ss.:

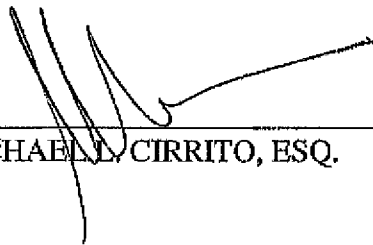
I, the undersigned, am an attorney admitted to practice in the Courts of New York State, and say that:

I, MICHAEL L. CIRRITO, am the attorney of record for the Plaintiff, and I have read the foregoing **COMPLAINT** and know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon the following:

Conversations with the Plaintiff, and books, papers, and records in the possession of this office.

The reason I make this Affirmation instead of Plaintiff, is because Plaintiff resides in a County other than that in which Affirmant maintains an office.

I affirm that the following statements are true under penalties of perjury.



MICHAEL L. CIRRITO, ESQ.

Dated: Hempstead, New York
December 16, 2014

SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

EDWIN CARTAGENA,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
LUCKIE (first name unknown), POLICE OFFICER
JEFFREY GASTON, POLICE OFFICER QUIRK
(first name unknown), POLICE OFFICER JOHN SOTO,
POLICE OFFICERS JOHN DOE "1" and
JOHN DOE "2",

Defendants.

SUMMONS AND VERIFIED COMPLAINT

WHITE, CIRrito & NALLY, LLP

Attorneys for Plaintiff

58 Hillton Avenue

Hempstead, New York 11550

Phone: (516) 292-1818 / FAX: (516) 489-1940 (not for service)

To:

Attorneys for:

Service of a copy of the within

is hereby admitted.

Dated:

Attorneys for

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney
admitted to practice in the courts of New York State, certifies that,
upon information and belief and reasonable inquiry, the
contentions contained in the annexed document are not frivolous.

Date:

Signature:

Attorney